

9:00 11	24CV441131	Gray West Construction vs. Elks Lodge	Defendant petitions this court to compel plaintiff to respond to defendant's special interrogatories. Special Interrogatory Nos. 6 and 7 request identification of supporting documents to Plaintiff's damages claim. This court finds the request to be relevant and reasonable. Defendant's petition to compel as to Special Interrogatories 6 and 7 is GRANTED. Special Interrogatories Nos. 13, 14, and 15 seeks information to justify the damages sought by Plaintiff. This court agrees with the Defendant that Plaintiff's responses need to inform the Defendant of the actual defects alleged. Defendant's petition as to Special Interrogatories 13, 14, and 15 are GRANTED. Special Interrogatories 16, 17, 18 and 19 relate to misrepresentation and overcharge claims. Plaintiff's responses are not specific as to the fraud allegations. Defendant's petition as to Special Interrogatories 16, 17, 18 and 29 are GRANTED. Special Interrogatory No. 35 requests Plaintiff to identify proposed change order communications by bates range. This court finds the request to be relevant and reasonable. Defendant's petition as to Special Interrogatory No. 35 is GRANTED.
9:00 12	24CV449229	Andrew Little vs. Shuo Rong, et.al.	Defendant City of San Jose moves this Court to determine that the settlement entered into between the Plaintiff and the City was made in good faith under CCP 877 and 877.6(a)(1). Settlement was reached between the Plaintiff and the City regarding a traffic collision that occurred on November 8, 2023. Defendant filed no objection to this motion. Defendant's motion is GRANTED. Any current or future claim against the City of San Jose for equitable comparative contribution, partial or comparative indemnity, or comparable fault based reimbursement arising from the November 8, 2023 incident if ordered barred.
9:00 13	25CV467015	Dmitri Dolgov, et.al. vs. Jerry Kwok, et.al.	Plaintiff filed a petition to compel further responses to form and special interrogatories regarding Millenium Construction. Plaintiff's petition argues that Defendant failed properly identify photographs submitted in response to Form Interrogatory 311.1. Plaintiff's petition as to Form 311.1 is GRANTED. Plaintiff petitions this court to respond to a request for specific dates. Defendant argues that at all relevant times defendant was supervising work done. This answer does not appear to be sufficient. Plaintiff's petition as to further responses for Form 321.4 is GRANTED. Plaintiff petitions this court to compel Defendant for responses as to Special Interrogatories. This court agrees with Defendant that Plaintiff failed to submit a separate statement indicating individual interrogatories and responses and thus was not code compliant. Plaintiff's petition to compel further responses as to Special Interrogatories is DENIED. Monetary sanctions are DENIED. Plaintiff petitions this court to compel discovery of Pacific Realty. Plaintiff request contact information related to financial institutions used by Pacific Realty. Such information is not protected by a company's privacy interests. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 70, 82, and 103 are GRANTED. This court finds that Defendant Pacific Realty's responses to Special Interrogatories Nos. 24-27 are sufficient. Plaintiff's petition to compel discovery of Special Interrogatories Nos. 24-27 are DENIED. Defendant seeks leave to amend answer to change Defendants answer to Form Interrogatory 326.1, Request for Admission No. 8 from DENY to ADMIT. Defendant's petition is GRANTED. Plaintiff petitions this court to compel further response to Form Interrogatory 326.1, Request for Admission No. 9. Defendant fails to identify documents, provide contact information, or specific facts to support its answer. Plaintiff's petition to compel further discovery for Form Interrogatory 326.1, RFA No. 9 is GRANTED. Monetary sanctions are DENIED.